

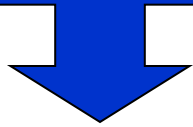
Chapter Three: Constitutional Development in Ethiopia

World Experience- US and England
Ethiopian Constitutional Development

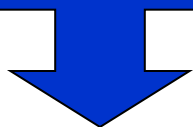
- Pre 1931
- The 1931 Constitution
- The 1955 Revised Constitution
- The Proclamation establishing the PMAC
- The 1987 PDRE Constitution
- The Transitional Charter

US Path to the Constitution

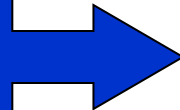
Magna Carta
1215



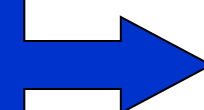
Mayflower Compact
1620



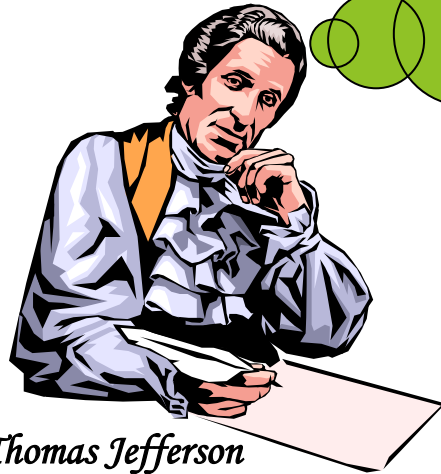
English Bill of Rights
1689



Declaration of Independence
1776



Articles of Confederation
1781

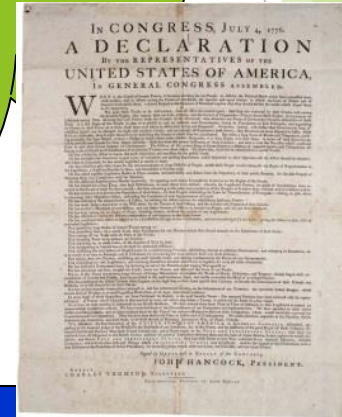


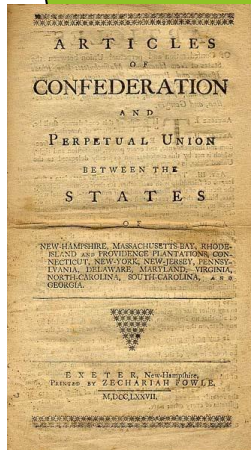
Thomas Jefferson

Author of the "Declaration of Independence"

After declaring independence from Great Britain, the colonies knew that if they wanted to grow and prosper, they would need a plan for unity.

Effective March 1, 1781, the colonies were governed by the Articles of Confederation.





The Articles of Confederation posed many challenges. The powers of the central government were weak and the Articles were impossible to amend.



John Adams

Founding Father and 2nd President

Articles of
Confederation
1781

The Federalist
Papers
1787-1788

United States
Constitution
1788

Weaknesses of the Articles of Confederation

Weakness

- ✓ No power to tax
- ✓ No national executive
- ✓ Unicameral legislature
- ✓ No judicial/national court

No checks & balances!

Result

No money

No enforcement of laws

One vote / state
unequal representation

Problems with interstate
relations

Weaknesses of the Articles of Confederation

Weaknesses

- ✓ No regulation of commerce
- ✓ No power to maintain army
- ✓ Government dominated by states
- ✓ Need 9/13 to pass a law & unanimous consent to amend

Results

Economic quarrels
No foreign trade

No defense

No unity

Impossible to accomplish

Path to the Constitution



James Madison

"Father of the Constitution"

In May of 1787, delegates from each state met to write a new Constitution. Through discussion and debate over issues like states' rights, individual rights, and the power of the national government, a compromise was made and the result became the "law of the land," the U.S. Constitution.



United States
Constitution
1788

The Bill of Rights
1791

Amendments
11-27
1795-1992

Celebrate the Constitution

Popular
Sovereignty



George Washington

*President of the Constitutional
Convention and 1st President*



"The Constitution is the guide which I never will abandon."

-George Washington

September 17, 1787 was a glorious day! The U.S. Constitution was finally signed by the delegates of the Constitutional Convention. The Constitution included a strong central government based on compromise; it outlined national powers and provided provisions for amending the Constitution.

Checks and
Balances

Separation of
Powers

Limited
Government

A Living Document

Because there was so much interest and debate regarding individual rights, on December 15, 1791, ten amendments known as the Bill of Rights were added to the U.S. Constitution. Since then, seventeen more amendments have been added to the Constitution.

Federalism

Individual Rights



Republicanism



Benjamin Franklin

*Signer of the Constitution and
Founding Father*

A Living Document

The Constitution is both a product of its time and a document for all time. It can be changed as society's needs change.

England

- England very early enjoyed a unified law.
- England created the common law in the 14th century. This was not develop in France until 19th or in Germany until 19th and even then only in theory of the Pandectists School.
- Thus, there never existed in England one of the essential factors behind the idea of codification.
- These factors on the Continent were the practical need to unify the law as well as on the philosophy of the Enlightenment and the thinking of natural lawyers.
- Roman and England gave judicial protection to rights only if the plaintiff could obtain a particular document of claim.
- The very similar ways in which litigation was initiated in English and Roman law led legal practitioners in Rome and England to think not so much in terms of rights.
- Legal practitioners in England and Roman system thought in terms of types of action. Roman law and medieval common law were both dominated by procedural thinking.
- In both systems, the rules of substantive law emerged later from procedural law

Ethiopian Constitutional Development

- Pre 1931
- The 1931 Constitution
- The 1955 Revised Constitution
- The Proclamation establishing the PMAC
- The 1987 PDRE Constitution
- The Transitional Charter

Pre 1931

- ▶ Before 1931, Ethiopia did not have a written constitution
- ▶ Various emperors ruled the country without regard to such constitutional principles as separation of power and the rule of law.
- ▶ The emperors enjoyed absolute power; they did not know of any legal limitations.
- ▶ Emperors adopted unitary form of state.
- ▶ The absolute emperors aspired for political centralization.
- ▶ Force, religion and the legend of the Solomonic Dynasty served as tools

Pre 1931

- ▶ Only those who could establish a link with the tradition of the Solomonic Dynasty were taken as the right persons to rule the country
- ▶ Those who could not establish such connection faced legitimacy crisis.
- ▶ In the latter category, you can cite the Zagwe Dynasty and Emperor Theowodrows II as examples.
- ▶ Those kings or emperors who could show that they belonged to and were ready to defend the Orthodox religion could easily establish themselves as rulers proper.
- ▶ Those who failed to do so would be ousted.
- ▶ In the latter category, you can mention the cases of Emperor Susuneous, who converted himself into a Jesuit and Lij Eyasu, who sympathized with Muslims.
- ▶ Practical limitations such as the existence of power contenders and lack of effective control of the periphery by the center dictated the concession of some degree of local autonomy to the regional lords

The 1931 Ethiopia's Constitution

- Before the adoption of this Constitution, the country did have governments with their own systems.
- Even if there were no written texts about these systems, they were functioning as well as any other system could with a working and written constitutional text.

The 1931 Ethiopia's Constitution

- ▶ The pillars of the then governments, which had been **traditional** and **absolute monarchies**, were three; **Might/legend**, **religion** and **Kinship** claims.
- ▶ These had been serving for assuming office, for running it and loosing it as well.
- ▶ In no time in Ethiopia's history there had been peaceful transfer of power.

The 1931 Ethiopia's Constitution

- ▶ So, legend/might has been playing a central role in assuming and maintaining government power during those days.
- ▶ Moreover, religion and state had been functioning hand in hand that assumed for long a quid-pro-quo type of relationship.
- ▶ The Church had also been a functioning element of the government system during that era.

The 1931 Ethiopia's Constitution

- ▶ Till it had got its final and conclusive resolution by the first written constitution, the kinship claims for Kingships and other higher offices of government had been given higher significance.
- ▶ Those nearer to the Crown, who himself must have had some kind of linkage with his former, would have had the chance to join the club in the ruling class.
- ▶ It was Emperor Haileselassie I who gave this kinship claim a constitutional basis so that government power should remain perpetually in himself and his descendants.

The 1931 Ethiopia's Constitution

- ▶ Therefore, these three aspects of life had influenced the unwritten government system pretty much in its making and day-to-day running.
- ▶ That is why Clapham had written
'if a constitution is defined not as written document but as set of practices which guide the exercise of political power, then Ethiopia enjoyed constitutional government over a long period.'
- ▶ And it is very important to note that a constitution, for it to be named as such, need not be written as there are few countries of the world which do not have a written constitution to date, one of which is the United Kingdom.

The 1931 Ethiopia's Constitution

Rationales for 1931 constitution

1. The interest for centralized Ethiopia and
 2. The introduction of modern government system
- ▶ With its very few Articles-only 55-many issues of contending nature had been addressed.
 - ▶ Principally the inclusion of the first chapter with five articles with an exclusive treatment of the Emperor's power and the matters relating to the succession to the throne marked the culmination of the disputes on the candidacy to the kingship.

The 1931 Ethiopia's Constitution

Under Article 3, it was stated,

- ▶ 'the imperial dignity shall remain perpetually attached to the line of His Majesty Haile Selassie I, descendant of King Sahle Selassie whose line descends without interruption from the dynasty of Menlik I, son of King Solomon of Jerusalem and of the Queen of Sheba.'

The 1931 Ethiopia's Constitution

- ▶ This, therefore, had assured the other claimants of the throne that they never get it, even for 'eternity.'
- ▶ And the provisions in the constitution had been designed in such a way that the Emperor remained to be the central role-player in all matters of government.
- ▶ This way, government power was made to be highly centralized.

The 1931 Ethiopia's Constitution

- ▶ The other motive behind the constitution, i.e. **introducing modern government system** had been expressed through such matters as the establishment of a legislative organ.
- ▶ This was, in return, motivated by the wish that the Emperor had for elegance in the international forum where the country was, when it joined the League of Nations, **accused of being uncivilized because it had still embraced slave trade as national practice.**
- ▶ Thus, to address such blasphemy, the Emperor was committed to make **internal adjustments.**

The 1931 Ethiopia's Constitution

- ▶ The first parliament was introduced to the country with **two chambers**.
- ▶ These were the **Chamber of Deputies** and **Senate**.
- ▶ According to the Constitution, however, these organs **only had advisory role** to the Emperor's **ultimate law-making power**.
- ▶ **According to Article 31, members of the Senate were to be appointed by the Emperor from among the nobility and the local chiefs.**
- ▶ When it came to the **Chamber of Deputies**, they were to be chosen by the **nobilities** and **the local chiefs**.
- ▶ This was of a great achievement for its time though **it meant little or nothing as far as modern**, deliberative and democratic law-making processes.

The 1931 Ethiopia's Constitution

- ▶ The inclusion of Chapter III that treated some rights and freedoms of people was also another sign of modernity together with the introduction of the ministerial system that are accountable both individually as well as collectively to the Emperor.
- ▶ All these combined, gave the country a better picture to the international community.

The 1955 Revised Constitution

- ▶ This Constitution had been issued on the silver jubilee of the Emperor, on 4th Nov. 1955.
- ▶ The basics of the reasons for the revision of the 1931 Constitution have not been changed as such, except the newly added factors.
- ▶ First of all, after many African countries declared independence from colonial rule and most had been in the process to follow suit.
- ▶ Thus, lingering on the 1931 Constitution was not proper since it was by then outdated compared with what is going on outside.

The 1955 Revised Constitution

- Secondly, the federation of Eritrea with Ethiopia in 1952 had urged the Emperor to reconsider the 1931 Constitution with the intention of pursuing the consolidatory policies that he persistently wanted to follow.
- Finally, as we said for the external changes that had happened at the region's level, there had also been internal changes to which the 1931 document was far less than adequate to respond to.

For instance, the legitimacy of the old monarch had been challenged to some extent which must be addressed by reinforcing the previous stance.

The 1955 Revised Constitution

- ▶ The way it had come into force was not any different from its predecessor.
- ▶ It was stated in the Preamble in the following way;
- ▶ ‘whereas, twenty-four years ago, at the beginning of Our Reign, we granted to Our faithful subjects and proclaimed a Constitution for the Empire of Ethiopia...and WHEREAS, ALMIGHTY GOD, THE SOURCE OF ALL BENEFITS, has strengthened and inspired Us to lead Our beloved People,...
- ▶ We have prepared a Revised Constitution for Our Empire after many years of searching study and reflection;... NOW THEREFORE, WE, HAILE SELASSIE I, EMPEROR OF ETHIOPIA, do, on the occasion of the Twenty-Fifth Anniversary of Our Coronation, hereby proclaim and place into force and effect as of to-day, the Revised Constitution of the Empire of Ethiopia for the benefit, welfare and progress of Our beloved People. GIVEN in Our Imperial Capital, on this the 24th day of Tekemt, 1948 (Ethiopian Calendar), and on the Twenty-Fifth Anniversary of Our Coronation.’

The 1955 Revised Constitution

- ▶ Those underlined words imply that the making and unmaking of the constitutions had remained to be under the exclusive decisions of the Crown with no involvement of the people in it.
- ▶ In Chapter I, with a title ‘The Ethiopian Empire and the Succession to the throne’ the writers had exerted a lot of effort to elaborate on the succession to the throne issue in a much extensive manner. Only that chapter had 25 Articles out of the total of 131 Articles.

The 1955 Revised Constitution

- ▶ In Chapter II, the Constitution had tried to address the powers and functions of the Emperor, even if everywhere in the constitution his powers had been made to shine above all else.

The 1955 Revised Constitution

- ▶ Thus, the Constitution was primarily used to consolidate and centralize government power in the hands of His Majesty.
- ▶ Like its predecessor, Chapter Three dealt with the rights and duties of the people.
- ▶ Even if it was entitled as 'rights and duties' the content tells us that the intention of this chapter was to treat, as the current constitution chapter III does, the rights and freedoms of the people.
- ▶ These provisions are also worth looking into as a constitutional law student.
- ▶ See some rights in chapter 3

The 1955 Revised Constitution

- ▶ Rights and Duties of the People: Chapter III
- ▶ Article 37- No one shall be denied the equal protection of the laws.
- ▶ Article 38- There shall be no discrimination among Ethiopian subjects with respect to the enjoyment of all civil rights.
- ▶ Article 39- The law shall determine the conditions of acquisition and loss of Ethiopian nationality and of Ethiopian citizenship.

The 1955 Revised Constitution

- ▶ If one can see how extensive it was with this regard, it is easy to realize that even the present constitution, which is considered to have given much attention to the fundamental rights and freedoms of the people, falls short of it.
- ▶ Some 28 Articles were devoted to this chapter out of a total of 131.
- ▶ Especially, the provision that related with private property rights to all things including land had been of its first and last kind in Ethiopian constitutional law history.
- ▶ Under Article 43, the constitution seems to have upgraded the right to property to a status having equal importance with the right to life and liberty.

The Military Administration and the 1987 Constitution

- ▶ The discomforts that had been felt by the society towards the monarchical rule had got their momentum in the 1970th during which the Emperor was trying to make few adjustments to regain the status quo.
- ▶ There had been measures to install constitutional monarchy in the country though it had not been successful.
- ▶ This latter system is a system of government that few countries of the world are governed with at present.

The Military Administration and the 1987 Constitution

- ▶ It is a system of government in which the monarch shares power with a constitutionally organized government.
- ▶ The monarch may be de facto head of state or a purely ceremonial leader.
- ▶ At any rate the constitution allocates the rest of the government's power to the legislature and the judiciary.
- ▶ The countries that have this mode of government are the UK, Belgium, Cambodia, Jordan, The Netherlands, Norway, Spain, Sweden, and Thailand.

The Military Administration and the 1987 Constitution

- ▶ The attempt wasn't fruitful
- ▶ Finally culminated by the military getting the upper hand to reach to the palace in Sept. 12, 1974
- ▶ Established the Provisional Military Administrative Council (PMAC) by a single proclamation that at the same time deposed the Emperor from power.
- ▶ The 1975 nationalization proclamation of all rural lands and extra-houses had made all privately owned enterprises and buildings to fall under the state ownership, including the rural lands.

The Military Administration and the 1987 Constitution

- ▶ Especially, the nationalization of land was a measure that aimed at responding to the various revolutionary motto of: ‘land to the tiller’
- One of the biggest agendas of the rest of political parties that still remained dissatisfied with what was going on in the palace which had been taken over by less educated, though powerful military administration.

The Military Administration and the 1987 Constitution

The Constitutional Making Process: Preparation of a Draft & Discussions

- ▶ The Derg continued to rule the country without any constitutional basis for thirteen years.
- ▶ The Workers' Party of Ethiopia's (WPE) formation in 1984 had included with it a duty to devise a new national constitution that would put in place the People's Democratic Republic of Ethiopia (PDRE).

The Military Administration and the 1987 Constitution

- ▶ In March 1986, a 343-membered Constitutional Commission was formed to draft a new constitution
- ▶ It had, as its guiding doctrine, the principles of scientific socialism.
- ▶ The commission's diverse membership included religious leaders, artists, writers, doctors, academics, athletes, workers and former nobility.
- ▶ There was also an attempt to have balanced ethnic representations in the committee.

The Military Administration and the 1987 Constitution

- ▶ For about six months the committee debated on the contents of the Constitution and finally managed to come up with a 120 article draft Constitution in June 1986.
- ▶ The government printed 1 million copies of this draft and distributed it for discussions and comments to Kebeles and peasant associations all over the country.
- ▶ The draft was discussed in over 25,000 places for a consecutive two months time which had in reality given fruits though the willingness to apply those fruits with genuine commitment to the public's interest remained to be constrained by the absence of political will.
- ▶ Basically, the regime used this discussion to legitimize the constitution-making process and create a forum for testing the public's reaction on the Constitution.

The Military Administration and the 1987 Constitution

- ▶ In some cases people attended constitutional discussion sessions with full will, while in most of the cases it was done because of the impositions by the peasant associations, who had used various enforcement mechanisms to secure attendance.
- ▶ By far, the most controversial draft provision was the one that outlawed polygamy, which caused serious furor anger among Muslims.

The Military Administration and the 1987 Constitution

- ▶ Few questions were raised about the document's failure to address the outstanding **nationalities problem and the right to self-determination**.
- ▶ According to government officials, the citizenry submitted over 500,000 suggested revisions, though only ninety-five of which were to be accepted by the Commission which had reconvened in August.
- ▶ And to be exact, most of the changes on which the Commission had acted upon were more of form than substance that didn't alter the structural aspects of the draft.

The Military Administration and the 1987 Constitution

Adoption of the 1987 Constitution

- ▶ Once in Ethiopian history the public was called for a referendum to vote on the draft constitution that was discussed by the public and revised by the Commission.
- ▶ The referendum was held on February 1, 1987 whose result had been announced by the President three weeks after.
- ▶ He reported that 96% of the 14 million people eligible to participate (adults eighteen years of age and above) actually voted.
- ▶ 81% of the electorate endorsed the constitution, while only 18% opposed to it (1% of the ballots was declared invalid).

The Military Administration and the 1987 Constitution

- ▶ The Constitution became officially effective on February 22, 1987, when the People's Democratic Republic of Ethiopia was proclaimed,
- ▶ The people had elected the members of the National Shengo in June that year which had officially assumed power in September as the first civilian government of the country.

The Military Administration and the 1987 Constitution

- ▶ Except the adoption of the document, however, little had been changed in the leadership of the government in terms of changes of personalities.
- ▶ For example, the National Shengo elected Mengistu to be the country's first civilian president; he remained, however, the WPE's general secretary.
- ▶ Other high-ranking Derg and WPE members received similar posts in the new government
- ▶ The Derg deputy chairman, Fikre-Selassie Wogderes, who became Ethiopia's prime minister, and Fisseha Desta, WPE deputy general secretary, who became the country's vice president.

The Military Administration and the 1987 Constitution

- ▶ The document, which established the normative foundations of the Republic, consisted of **seventeen chapters** and **119 Articles**.
- ▶ The Preamble traced Ethiopia's origins to the antiquity, proclaimed the historical heroism of its people, praised the country's substantial natural and human resources, and pledged to continue the struggle against imperialism, poverty and hunger.
- ▶ The government's primary program was also written within the Constitution and it was claimed to be the country's development through the implementation of the Program for the National Democratic Revolution (PNDR).

The Military Administration and the 1987 Constitution

- ▶ In the process, it was assumed that the material and technical bases necessary for establishing socialism would be created
- ▶ The Constitution was not only used to lay down the framework of the government to be in place
- ▶ defining its organs with their respective powers and lay down the general principles from which all other laws would have to be drawn
- ▶ It rather was used to legislate the government's policies and programs which do not go along with the basic nature of a constitution in terms of content.

The Military Administration and the 1987 Constitution

- ▶ The Constitution attempted to situate Ethiopia in the context of the worldwide movement of so-called "progressive states" and made no direct reference to Africa.
- ▶ Critics claim that the Constitution was no more than an abridged version of the 1977 Soviet Constitution, with the exception that strong powers were assigned to the newly created office of the President.
- ▶ A second difference between the Ethiopian and Soviet constitutions is that the former declared the country to be a unitary state rather than a union of republics.
- ▶ It was reported that the problem of nationalities was hotly debated in the Constitutional Commission, as well as in the WPE Central Committee, but the regime would not abandon its desire to create a single multiethnic state rather than a federation.

The Military Administration and the 1987 Constitution

- ▶ This Constitution had been a document that was short-lived ever in Ethiopian constitutional law history as it was suspended by the Transitional Government of Ethiopia in 1991,
- ▶ When the Derg military force had gave up itself for the current TPLF and other groups which were in an armed struggle for the last 17, and for some over 30 years.
- ▶ Thus, there was no enough application of the provisions to judge if the constitution was effective in achieving the purposes and policies that it had pledged in its contents.

Ethiopia Constitutional Development Since 1991

- ▶ The Derg's constitution was a very short-lived one.
- ▶ After four years, the opposition groups were getting hold of most of the parts of Ethiopia.
- ▶ The major win for the rebels and a debacle for the Derg had happened in 1989 during which the coalition forces of EPLF and TPLF had captured Shire, Tigray.
- ▶ When the win had increased in scope, the latter started to rethink its agenda as it was an organization formed to liberate only a single region-Tigray.
- ▶ Controlling power at the centre made it imperative for TPLF to mobilize the other forces and bring them under common agenda.

Ethiopia Constitutional Development Since 1991

- ▶ **EPRDF** was the result of this thinking which gave the leaders to discuss **nation-wide control** rather than only Tigray
- ▶ **EPRDF** was constituted of **TPLF**, **EPDM** (Ethiopian People's Democratic Movement-which later changed to the Amhara National Democratic Movement-**ANDM** in 1994), **OPDO** (Oromo People's Democratic Organization) and **EDORM** (the Ethiopian Democratic Officers Revolutionary Movement, composed of the government military officers who had fallen into TPLF's hands, which didn't last long), and the last to join **EPRDF** was the coalition members representing the South, Southern Ethiopian Peoples' Democratic Front (**SEPDF**) in 1994
- ▶ The establishment of the **OPDO** was a last resort decision that the **EPRDF** had taken when the attempt to forge a meaningful cooperation with the **OLF** (the Oromo Liberation Front) had failed

Ethiopia Constitutional Development Since 1991

- The Derg's economic power was staggering because of the fall of its important source-base, the USSR.
- Even if a conference was scheduled for May 1991 to bring together the opposition forces and the government,
- it never took place and the opposition forces had managed to get hold of Asmara and Addis Ababa
- That led the president-Colonel Mengistu Haile Mariam to flee from the country.
- Just a day after the scheduled May 27, 1991 conference, the EPRDF forces declared that they had controlled Addis Ababa.

Ethiopia Constitutional Development Since 1991

- A national conference was convened from the 1st to 5th of May 1991 which resulted in the signing of a Charter (Charter No. 1 Negarit Gazeta No. 1, Year 50, Addis Ababa, 22 July 1991) by the representatives of some 31 political parties.
- By the words of the Charter, an 87 seat Council of Representatives was established together with the Transitional Government of Ethiopia.
- TPLF, OPDO, EPDM, the three main members of EPRDF, each secured 10 seats and two seats were reserved for another member of EPRDF mainly constituting former officers and were later dissolved.
- In total EPRDF secured 32 seats, OLF secured 12 seats, and other ethnically based parties by and large were granted seats ranging from 1 to 3.

Ethiopia Constitutional Development Since 1991

- The conference had also agreed on some program of actions for the coming two years.
- Holding elections for local governments, the drafting of a new constitution, electing members of the Constitutional Assembly that would ratify the constitution was to be conducted, and finally election of the National Assembly that brings an end to the transition was to be held.

Ethiopia Constitutional Development Since 1991

The Charter and its clues for Federalism

- Even if there had been many elements that clearly imply how much federalism had been taken as the bottom-line for all the contents of the Charter as well as the subsequent Proclamation referred below, no mention of the word 'federation' could be found in the total text of both.

Even both documents ensure each nationality with the right to self-determination including secession.

The Proclamation specifically enumerated the powers of the central government and those of the self-governments though the power seemed to have been concentrated within the centre.

Following is the description of some of the ideas that echoed the federal state structure for the future Ethiopia.

Ethiopia Constitutional Development Since 1991

- From the outset, the composition of the participants in the May conference itself was an indication of Ethiopia's prospect concerning the state structure and the right of self-determination that it intended to provide to its nationalities.
- Save the representatives from professional groups and members of the university, members to the conference were entirely designated on the basis of nationality, either from existing movements, or in some cases, notably in the South and Southwest, from organizations rapidly formed in order to take advantage of the new political atmosphere.

Ethiopia Constitutional Development Since 1991

- The Charter had shown a complete shift in terms of political power distribution, from the traditional centralized system to the empowerment of the regions so that avoiding the regions' marginalization that persisted for long in traditional Ethiopia.
- The Charter, under its Article 2 established the framework for the provisional government and guaranteed nationalities to preserve their identity, administer their own affairs within their own defined territory, the right to participate in the central government based on fair and proper representation, and the right to self determination.
- Under its Article 8, it expressly empowered all legal and political responsibility for the governance of Ethiopia on the regions until it hands over power to a government popularly elected on the basis of a new constitution.

Ethiopia Constitutional Development Since 1991

- Article 13 of the Charter empowered the TGE (Transitional Government of Ethiopia) to establish by law local and regional councils defined on the basis of nationality.
- Then a later proclamation (Negarit Gazeta 51st Year No. 2, Addis Ababa, 14th January 1992) established the national regional self-governments with 14 independent regions and enumerated 64 nations, nationalities and peoples.
- The Proclamation provided for 48 of the identified nationalities to be able to start their own national/regional self-government at the woreda level or above.

Ethiopia Constitutional Development Since 1991

- The charter and the proclamation explicitly provided that the boundaries of the respective self-governing regions be defined on the basis of nationality as a means ensuring the guarantee of these nationalities with their right to self-determination.
- The Proclamation distinguished regional self-governments based on an agreement of two or more adjacent nationalities, and national self-governments established by any nation, nationality or people.

Ethiopia Constitutional Development Since 1991

- The remaining other nationalities and peoples with small populations were defined as **minorities**, i.e. a nationality or people **which can not establish its own woreda** or **self-government** **because of the small number of its population.**
- The national/regional governments had **law-making, executive and judicial** powers and had used them **extensively** until they were replaced by new elections with the adoption of the 1995 Constitution.

Ethiopia Constitutional Development Since 1991

- So, in this way we saw a shift in the system of government by principally changing the unitary system to federal structure and also by recognizing the right of peoples for self-determination.
- This is believed to have given a solution to the long-standing nationalities questions that had been consistently ignored for the last many years.
- It was by then, and still it is recognition of Ethiopia as a multi-ethnic state.

Ethiopia Constitutional Development Since 1991

- One of the major tasks of the Transitional Council of Representatives was to direct the process of constitution making and pave the way for a national election based on the ratified constitution.
- A Constituent Assembly was elected in 1993, the TGE a constitutional commission to prepare a draft instrument for submission to a specifically elected constitutional assembly vested with plenary power to promulgate an organic law.
- As they did during the 1992 elections, the opposition parties withdrew from the process and one can say the whole story was under the influence of EPRDF and only few individuals dared to participate representing the oppositions.

Ethiopia Constitutional Development Since 1991

- A 106 Article draft Constitution had been adopted by the Constituent Assembly on Dec. 8, 1994, which came to effect only on August 21, 1995 after it was published on the Negarit Gazata signed by the first Ethiopia's Federal Government president.
- The hot issue during the discussion on the draft text had been, as it used to be, on the self-determination and rights of nationalities.
- In fact this was not as debatable as the structural adjustment of the regions while opting for classification on the ground of ethnicity.
- This was so because the question of the nationalities right to self-determination had already been mainstreamed by then, though how to go about it had been postponed to that critical time of adopting the constitution.

Ethiopia Constitutional Development Since 1991

- As was true with the 1987 Constitution making, the Constitutional Commission presented a draft for discussion.
- The divergence was, however, it was presented for approval for the Constituent Assembly which was presumably a representation from the wider range the Ethiopian people.
- Therefore, referendum remained to be a history once made in Ethiopia and that was in the 1987 constitution which was also historical in the sense that it lived for a very brief span of time.

Ethiopia Constitutional Development Since 1991

- Thus, the 1995 and the currently operational FDRE constitution had been approved by the majority vote of the elected representatives of the people and not by the people themselves directly.
- Much of the contents of this constitution will be discussed in the chapters to come in much greater detail and we will not for the moment go further with this regard.

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Fundamental Rights and Freedoms under the FDRE Constitution

- FDRE, as well as many other constitutions of the world for that matter, attach to those rights and freedoms.
- For example almost **one-third of the constitutional text** is covered by these **rights and freedoms**, and the stringent amendment procedures stipulated in Article 104 and 105(1) of the constitution also reiterate this importance.
- Article 13(1), by imposing a duty on both federal as well as regional legislative, executive and judicial organs to protect and enforce those rights and freedoms gives the provisions of chapter III of the constitution a special position.

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The nature of the fundamental rights and freedoms

- ▶ The name 'fundamental rights and freedoms' is used to describe all those rights included in chapter III which the constitution later on classifies them as Human Rights and Democratic Rights.
- ▶ what do you think is the difference between 'right' and 'freedom' or do you think they are synonymous?

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- In jurisprudence and law, a right is the legal or moral entitlement to do or refrain from doing something or to obtain or refrain from obtaining an action, thing or recognition in civil society.
- Rights serve as rules of interaction between people, and, as such, they place constraints and obligations upon the actions of individuals or groups

(for example, if one has a right to life, this means that others do not have the liberty to murder him).

- There are two main modern conceptions of rights:

on the one hand, the idea of natural rights holds that there is a certain list of rights enshrined in nature that cannot be legitimately modified by any human power.

On the other hand, the idea of legal rights holds that rights are human constructs, created by society, enforced by governments and subject to change.

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The word **freedom**, on the other hand, is claimed to have originated in England.

English had **its beginnings about fifteen hundred years ago**, when the "**Angle-ish**" spoken by the Angles and Saxons separated from other Germanic languages as the Angles and Saxons, crossing the water to settle in what they would call "Angle-land," separated from other Germanic tribes.

Since that time, **no word has been of more significance to English speakers than freedom.**

This word was not carried to England as part of the Angles' and Saxons' Germanic language heritage, nor was it imported from another language.

Instead, it seems to have been a homemade invention, put together from two existing Germanic words to form a distinctive concept.

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- ▶ Consequently, two fundamental controversies exist that surround the notion of rights:
- ▶ **First**, there is the question of the *basis* for rights (on what basis rights can be said to exist, are they natural or are they a human construct).
- ▶ **Second**, there is the question of the *content* of rights (what the rights of a person actually are, can a person possess unlimited rights to do whatever s/he can or is there a possible limit on it, if so where does that limit begin or end).